HAVELLIN PALM BEACH

# Independent Contractor Agreement

*Property Specialist and Transition Concierge*

Version 1.2 | Draft dated October 20, 2026 | Pending review by counsel

## Executive Summary

This is Havellin's standard agreement for 1099 contractors serving as Property Specialists or Transition Concierges. It establishes independent contractor status, incorporates the Client Property, Gifts and Confidentiality Policy, and makes the confidentiality commitment in Havellin's client agreements true for contract staff.

- **Independent status.** Contractor controls methods, may decline assignments, may work for others and has no authority to bind Havellin.
- **Rates are set per contractor** in Schedule A, with reference rates of $30/$35 per hour for PS and $60 per hour for TC, invoiced weekly and paid within 7 days. W-9 is required.
- **Insurance acknowledgment.** Havellin's liability, bailee's, auto, umbrella and crime policies protect Havellin and its Clients and respond to claims arising from Contractor's work on Havellin's behalf. They do not insure Contractor's own injury, illness or property. Contractor is not an employee, and initials Section 6 to confirm.
- **Site rules.** Same-day incident reporting through the Havellin app, the Estate Firearms Protocol, sign-out on the iPad for anything that leaves a property, and no Client Property in a personal vehicle.
- **Policy incorporated.** The hard ban on acquiring or diverting client property, the no-gifts rule, pooled tips and the no-personal-referral-fees rule all apply, and a violation is a material breach.
- **Protections for Havellin.** Confidentiality, background check consent, a 12-month client and personnel non-solicit, work product assignment, indemnification and hold harmless for Contractor's own acts, and no subcontracting.
- **Exit.** Either party may terminate at will, Havellin may terminate immediately for cause, and property is returned on exit.

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## 1. Parties and Engagement

This Independent Contractor Agreement (the "Agreement") is entered into as of the Effective Date stated in Schedule A between Havellin Palm Beach, LLC, a Florida limited liability company, 515 N Flagler Drive, Suite 350, West Palm Beach, FL 33401 ("Havellin"), and the individual or business identified in Schedule A ("Contractor").

Havellin engages Contractor on a non-exclusive, project-by-project basis to provide estate transition services to Havellin clients in the role identified in Schedule A, either Property Specialist or Transition Concierge, on the terms below.

## 2. Independent Contractor Status

**2.1 Not an Employee.** Contractor is an independent contractor and is not an employee, agent, partner, joint venturer or member of Havellin. Nothing in this Agreement creates an employment, agency, partnership or joint venture relationship.

**2.2 Contractor's Own Business.** Contractor operates an independent business, is free to provide services to others, including other businesses in the same field, and holds itself out to the public as available to do so, subject only to Sections 8 and 10.

**2.3 Control of Methods.** Contractor controls the manner, means and methods of performing the services. Havellin communicates the results required by each engagement, the Client's instructions and schedule, site safety requirements and the standards in the Policy, but does not direct how Contractor performs the work.

**2.4 Right to Accept or Decline.** Havellin will offer assignments as available, and Contractor may accept or decline any assignment without penalty. Havellin has no obligation to offer any minimum amount of work, and Contractor has no obligation to accept any.

**2.5 No Authority to Bind.** Contractor has no authority to enter into contracts, make commitments or incur obligations on behalf of Havellin or any Client.

**2.6 Status Claims.** If any government agency or court determines that Contractor is an employee of Havellin, Contractor agrees that this Agreement reflects the parties' intent and waives, to the extent permitted by law, any claim to benefits under Havellin benefit plans for the period covered.

## 3. Services and Standards

**3.1 Services.** Contractor will perform the services typical of the role selected in Schedule A on each accepted assignment. A Property Specialist performs hands-on estate work, including sorting, documenting, packing, staging and preparing items for their disposition. A Transition Concierge leads on-site engagements, oversees the Client relationship and coordinates documentation and vendors.

**3.2 Professional Standards.** Contractor will perform all services in a professional, careful and workmanlike manner consistent with the luxury standard of Havellin's clientele, follow each Client's instructions and building or community rules, and comply with all applicable laws.

**3.3 Documentation.** Contractor will record work, hours, inventories and dispositions accurately in the Havellin app, which Havellin requires so that it can bill and account to its Clients. Hours are recorded in half-hour increments, as worked.

**3.4 Incidents, Firearms and Custody.** Contractor will report any injury, property damage, missing item, discovered valuable, hazardous condition or client complaint the same day through the Incidents card in the Havellin app, and will call Anthony Graziano at once for an injury, a missing item or a concern about a vulnerable

adult. Contractor will never handle, move, carry out or transport a firearm; the Estate Firearms Protocol is incorporated into this Agreement by reference. Anything that leaves a client property is signed for on Havellin's iPad, through the app's sign-out, before it goes. Photographs, video and audio are taken only through the Havellin app, as Section 8.2 provides.

## 4. Compensation, Invoicing and Payment

**4.1 Rate.** Havellin will pay Contractor at the hourly rate stated in Schedule A for hours worked on accepted assignments. Rates are set individually and may be revised by written agreement.

**4.2 Invoicing.** Contractor will invoice Havellin weekly for the hours worked in the prior week, supported by the hours recorded in the Havellin app.

**4.3 Payment.** Havellin will pay each undisputed invoice within seven (7) days of receipt. Havellin will notify Contractor promptly of any disputed amount.

**4.4 Tips.** Tips and monetary gifts from Clients are handled under Section 6 of the Policy. Contractor's share of pooled tips is paid at completion of the engagement and included in Contractor's reported compensation.

**4.5 No Benefits.** Contractor is not eligible for any employee benefit Havellin provides, as Section 6.1 states.

**4.6 W-9 Required.** Contractor will provide a completed IRS Form W-9 before any payment is made. Havellin will issue IRS Form 1099-NEC as required.

## 5. Taxes, Tools and Expenses

**5.1 Taxes.** Contractor is solely responsible for all federal, state and local taxes on compensation received under this Agreement, including self-employment taxes. Havellin will not withhold taxes.

**5.2 Tools and Transportation.** Contractor provides Contractor's own basic hand tools, smartphone, clothing appropriate to the work and transportation to and from client properties. Contractor will not transport Client Property in a personal vehicle unless Havellin directs it in writing for that trip. On such a trip, Havellin's hired and non-owned auto liability coverage responds to claims by third parties; it never covers damage to Contractor's own vehicle, which remains Contractor's and Contractor's own insurer's.

**5.3 Materials.** Packing and protective materials specific to an engagement are supplied through Havellin and billed to the Client.

**5.4 Expenses.** Contractor bears Contractor's own business expenses. Havellin reimburses an expense only if approved in writing in advance and supported by a receipt.

## 6. Insurance Acknowledgment

**6.1 Not an Employee; No Benefits.** Contractor is not an employee of Havellin and is not eligible for, and waives participation in, any employee benefit Havellin provides, including health insurance, retirement plans, paid time off and unemployment compensation. Havellin does not provide Contractor with health, disability, accident or any other insurance.

**6.2 Havellin's Policies.** Havellin maintains commercial general liability coverage ($[2,000,000] per occurrence / $[4,000,000] aggregate); inland marine / bailee's customer coverage for Client Property in its care, custody or control ($[1,000,000 to 2,500,000], with a scheduled fine arts and collectibles endorsement written on an agreed-value basis); professional liability coverage; commercial auto coverage with hired and non-owned auto liability ($[1,000,000] combined single limit); a follow-form commercial umbrella ($[5,000,000 to 10,000,000]);

and commercial crime and cyber coverage ($[limit]). These policies protect Havellin and its Clients. They respond to claims by Clients and third parties arising from work performed on Havellin's behalf, Contractor's work included. They do not insure Contractor's own injury, illness or property, and the crime coverage's protection against dishonesty by any person working on Havellin's behalf runs to Havellin and the Client, never to Contractor. Bracketed figures are the limits Havellin has requested from its broker and will be replaced with the limits bound.

**6.3 Workers' Compensation.** Contractor is not an employee of Havellin. [Havellin carries a workers' compensation policy. / Havellin carries no workers' compensation policy covering Contractor.] Whether Contractor is covered by workers' compensation is decided by Chapter 440, Florida Statutes, and not by this Agreement. Contractor will give Havellin a copy of any workers' compensation exemption certificate Contractor holds and will tell Havellin when it lapses.

**6.4 Contractor's Own Insurance.** Contractor is responsible for obtaining any insurance Contractor considers appropriate for Contractor's own injury, illness and property, including health, disability and accident coverage. Havellin recommends an occupational accident policy. A Contractor that operates as a business and carries its own general liability coverage will provide a certificate of insurance on request.

**6.5 Assumption of Risk.** Estate work can involve lifting, ladders, clutter and unfamiliar property conditions. Contractor will use appropriate care, will not perform any task Contractor considers unsafe, and will stop work and notify the Transition Concierge of any hazardous condition.

Contractor initials to confirm Section 6: _____

## 7. Client Property, Gifts and Conduct

Contractor acknowledges receiving, reading and understanding the Havellin Client Property, Gifts and Confidentiality Policy (the "Policy"), which is incorporated into this Agreement by reference. Contractor will comply with the Policy as updated with written notice. Without limiting the Policy, Contractor and every Related Person:

- Will never purchase, bid on, accept or otherwise acquire any Client Property, directly or indirectly, at any price, through any channel, during or after any engagement, with or without Client consent.
- Will never remove, keep, use or divert any Client Property, including items designated for discard, donation or recycling, other than through its documented Disposition Channel.
- Will never accept any item from a Client's home as a gift, and will turn over all cash tips and monetary gifts the same day for pooled distribution.
- Will never personally accept any referral fee, commission, kickback or personal benefit from any vendor, or any bequest, loan, power of attorney or fiduciary appointment from a Client. Referral arrangements belong to Havellin only, as provided in Section 7 of the Policy.

Capitalized terms not defined here have the meanings given in the Policy. A violation of the Policy is a material breach of this Agreement.

## 8. Confidentiality

**8.1 Non-Disclosure.** Contractor will hold all Confidential Information, as defined in the Policy, in strict confidence; use it only to perform services under this Agreement; and disclose it only to Havellin Personnel and approved vendors with a need to know, or as required by law in accordance with the Policy.

**8.2 Photographs and Devices.** Contractor will capture photographs, video and audio only for engagement documentation through Havellin-approved apps, upload them to Havellin systems, and delete them from personal devices by the end of each workday.

**8.3 No Publicity.** Contractor will not post or share anything about any Client, client property or engagement on social media or any other channel, and will not identify any Client as a reference without Havellin's written consent.

**8.4 Client Agreements.** Contractor acknowledges that Havellin has made confidentiality commitments to its Clients and that this Section is intended to satisfy them. Contractor's obligations under this Section survive termination, indefinitely as to Client information.

## 9. Background Check and Site Access

**9.1 Background Check.** Contractor consents to a criminal background check, and any other screening Havellin's insurers or Clients reasonably require, conducted after Contractor signs a separate disclosure and authorization form complying with the Fair Credit Reporting Act. Engagement is conditioned on satisfactory results.

**9.2 Keys and Codes.** Contractor will safeguard all keys, codes, access cards and alarm information, use them only during scheduled work, never copy or share them, and return them as directed.

**9.3 Supervision of Others.** Contractor will not bring any other person onto a client property and will not leave any vendor unaccompanied at a client property.

## 10. Non-Solicitation

**10.1 Clients.** During this Agreement and for twelve (12) months after it ends, Contractor will not, directly or indirectly, solicit, accept or perform estate transition, cleanout, home preparation or related services for any Client or referral source with whom Contractor had contact or about whom Contractor received Confidential Information through Havellin, except on Havellin's behalf.

**10.2 Personnel.** During the same period, Contractor will not solicit or encourage any Havellin owner, employee or contractor to end or reduce their relationship with Havellin.

**10.3 Legitimate Business Interests.** Contractor acknowledges that Havellin has legitimate business interests under Section 542.335, Florida Statutes, in its Client and referral relationships, its goodwill and its confidential business information, and that these restrictions are reasonably necessary to protect them.

## 11. Work Product

All inventories, photographs, video, notes, reports, records and other materials Contractor creates in performing services are the property of Havellin or its Clients, as applicable. Contractor assigns to Havellin all rights Contractor may have in them and will not retain copies.

## 12. Indemnification and Hold Harmless

Contractor will indemnify, defend and hold harmless Havellin and its members, managers, employees and Clients from all claims, losses, damages and expenses, including reasonable attorneys' fees, arising from (a) Contractor's negligence or willful misconduct; (b) Contractor's breach of this Agreement or the Policy; (c) any theft, loss or damage of Client Property caused by Contractor or a Related Person; and (d) Contractor's failure to

pay taxes on compensation under this Agreement. This indemnity does not apply to the extent a claim is caused by Havellin's gross negligence or willful misconduct.

## 13. No Subcontracting or Assignment

Contractor's services are personal. Contractor may not subcontract, delegate or assign any services or rights under this Agreement, or send a substitute to any assignment, without Havellin's prior written consent. Havellin may assign this Agreement to a successor to its business.

## 14. Term and Termination

**14.1 Term.** This Agreement begins on the Effective Date and continues until terminated.

**14.2 Termination for Convenience.** Either party may end this Agreement at any time on written notice. Termination does not affect an assignment Contractor has already started unless the parties agree otherwise.

**14.3 Immediate Termination.** Havellin may terminate immediately on written notice if Contractor violates the Policy or the Estate Firearms Protocol, fails to report an incident under Section 3.4, breaches Section 8, 9 or 10, acts unsafely, or engages in conduct that could harm a Client or Havellin's reputation.

**14.4 Final Payment.** Havellin will pay Contractor for all hours properly worked through termination, less any amounts Contractor owes Havellin under this Agreement to the extent permitted by law.

**14.5 Return of Property.** On termination, Contractor will return all keys, codes, equipment, documents and Client Property, delete all engagement information from personal devices and accounts, and confirm in writing that this has been done.

**14.6 Survival.** Sections 2, 6, 7, 8, 10, 11, 12, 14 and 15 survive termination.

## 15. Remedies, Disputes and General Provisions

**15.1 Injunctive Relief.** A breach of Section 7, 8 or 10 would cause irreparable harm for which money damages are inadequate. Havellin is entitled to temporary and permanent injunctive relief without posting bond, to the extent permitted by law, in addition to any other remedy.

**15.2 Governing Law and Venue.** This Agreement is governed by Florida law. Any action relating to it will be brought in the state or federal courts located in Palm Beach County, Florida.

**15.3 Attorneys' Fees.** The prevailing party in any action to enforce this Agreement is entitled to recover reasonable attorneys' fees and costs.

**15.4 Severability.** If any provision is held unenforceable, a court may modify it to the minimum extent necessary to make it enforceable, and the remainder of this Agreement will remain in effect.

**15.5 Entire Agreement.** This Agreement, Schedule A and the Policy are the entire agreement between the parties and supersede all prior understandings. Amendments must be in writing and signed by both parties, except that Havellin may update the Policy with written notice.

**15.6 Notices.** Notices must be in writing and sent by email, with notices to Havellin sent to agreements@havellinpalmbeach.com and notices to Contractor sent to the email address in Schedule A.

**15.7 Electronic Signature.** This Agreement may be signed electronically and in counterparts, each of which is an original.

## 16. Schedule A: Contractor Details and Rate

Contractor name _____

Business name (if any) _____

Address _____

Email _____

Phone _____

Effective Date _____

### Role and Rate

Role (check one): [ ] Property Specialist  [ ] Transition Concierge

Hourly rate _____

Reference rates as of October 2026: Property Specialist, $30 per hour (entry) and $35 per hour (senior); Transition Concierge, $60 per hour. The rate written above controls for this Contractor.

### Payment

Invoices weekly for the prior week's hours. Payment within seven (7) days of receipt of an undisputed invoice. W-9 required before first payment.

### Onboarding Record

W-9 received (date) _____

Background check consent signed (date) _____

Section 6 initialled (date) _____

## Signatures

By signing, Contractor confirms receipt of the Policy and agrees to this Agreement, including Schedule A.

### Contractor

Name _____

Signature _____

Date _____

### Havellin Palm Beach, LLC

By _____

Title _____

Signature _____

Date _____